

2:00 PM

LINE 3

23-CIV-00926

CATHERINE RODRIGUEZ VS. NISSAN NORTH AMERICA, INC., ET AL

CATHERINE RODRIGUEZ
NISSAN NORTH AMERICA, INC.

ROGER KIRNOS
JASON M. RICHARDSON

PLAINTIFF'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Jacob Cutler and Knight Law Group to be relieved as counsel of record for plaintiff Catherine Rodriguez is denied without prejudice for lack of proof that the motion was properly served on plaintiff and all other parties who have appeared in the action. However, if counsel (provides notice) and appears and provides proof (that it has also filed in advance of the hearing) that plaintiff and all other parties who have appeared in the action received proper notice of today's hearing, the court will grant the motion.

The Proof of Service attached to the notice of motion indicates the moving papers were served electronically and by personal service. With respect to the electronic service, the POS indicates it was accomplished via the Case Anywhere Service System pursuant to a ruling in Sacramento Superior Court Case No. JCCP 4924. However, the record in this case does not indicate that it is part of the coordinated action.

To the extent the POS also indicates the moving papers were personally served, it states only that the declarant caused the documents to be sent to a court services provider to be personally served. There is no declaration from the person who actually accomplished the service indicating how and when it occurred.

Furthermore, the motion was originally set for hearing on January 25, 2027. It was advanced to the current date by an Order Shortening Time. To date, there is no proof that the Order Shortening Time was served on plaintiff.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 4

23-CIV-04063

MARIGOLDYZP I LLC VS. 88 TUSCALOOSA AVE LLC, ET AL

MARIGOLDYZP I LLC
ALI SADEGHI

CATHERINE S. ROBERTSON
MATTHEW S. KENEFICK

CROSS-DEFENDANTS DELIA FEI AND RON GABLE'S DEMURRER TO PIERRE BULJAN AND ELIZABETH BULJAN'S 2ND AMENDED CROSS-COMPLAINT

TENTATIVE RULING:

The Demurrer to Pierre Buljan and Elizabeth Buljan's 2nd Amended Cross-Complaint (the "Demurrer") brought by Cross-Defendants Delia Fei and Ron Gable (herein, "Cross-Defendants") is **OVERRULED** in its entirety.

Cross-Defendants' Request for Judicial Notice is **DENIED**, but to the extent it is necessary, the Court takes judicial notice of its own records *sua sponte*.

Background

It is alleged that on or about January 1, 2021, Plaintiff MarigoldYZP I LLC ("Marigold") and Defendant 88 Tuscaloosa Ave LLC ("Tuscaloosa") executed a purchase agreement and joint escrow instructions for the purchase of real property located at 88 Tuscaloosa Avenue, Atherton, California (the "Property"). The final sale price for the Property was \$37,000,000, with a \$1,110,000 deposit. Marigold paid Tuscaloosa the deposit. Marigold then provided \$8,440,000 toward construction, and agreed to provide an additional \$20,000,000, both secured by the Property. On December 18, 2021, the parties therefore executed a promissory note for \$28,440,000 with a maturity date of February 1, 2022, a loan guaranty executed by Defendant Sadeghi (the general contractor), an indemnity agreement, and a deed of trust, assignment of rents, security agreement, and fixture filing.

In March 2022, the city of Atherton issued a Stop Notice due to the failure of Eighty8 Home LLC (Defendant Sadeghi's company) to meet the deadline to complete construction and continuing delays. In order to restart construction, Tuscaloosa and Marigold executed an additional unsecured Promissory Note for up to \$2,500,000 and personal guaranties by Defendants Sadeghi and Buljan. Marigold provided two additional unsecured loans toward the construction in the amounts of \$360,000 and \$55,000.

Marigold contends that Tuscaloosa and Eighty8 Home LLC have failed to complete construction, have failed to satisfy their monetary obligations, and are now demanding an additional \$8,100,000 to complete the construction and close escrow, which Marigold has refused. Defendant Sadeghi knowingly caused Marigold to continue its funding based on material misrepresentations in order to pay personal and business expenses, and when no further payment was forthcoming, ceased all construction, refused to close escrow, and refused to permit Marigold to access the property.

Defendants Pierre and Elizabeth Buljan (collectively, "Cross-Complainants" or the "Buljans") filed a Cross-Complaint against Marigold, Hongyu Zhang (aka Sherry Yuan, an individual and sole member of Marigold), Erin Yuan, Delia Fei, Ali Sadeghi (an individual and sole managing member of 88 Tuscaloosa Ave LLC and Eighty8Home LLC), and Ron Gable. The Cross-Complaint alleges that the Cross-
